

USDC SDNY

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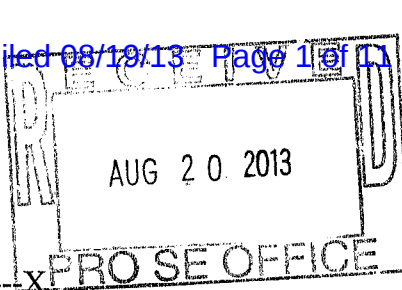
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SOUTHERN DISTRICT OF NEW YORK

8/19/13



UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

**FIRST AMENDED
CIVIL COMPLAINT**

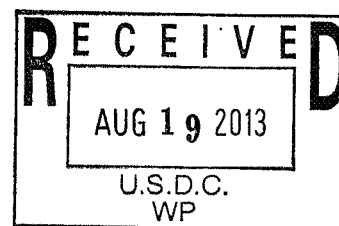
Plaintiffs,

-against-

No. 13 Civ. 616 (KBF)

CITY OF NEW YORK,
Captain JOHNSON, Lieutenant CHRISTOPHER VONKESSEL,
Sergeant PATRICIO OVANDO, Detective JAMES BARRY,
Detective MICHAEL SMYTH, Detective ORTIZ,
Detective BAKER, Detective FELTHAM,
Detective LARSON, Detective ROJAS,
Detective CARDONA and Detective LOLLO
(first name of last seven defendants unknown at this time),

*AMENDED
SUMMONSES ISSUED.*



Defendants.

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INTRODUCTION

1. This is an action to recover money damages for general, special and punitive damages, including damages for personal injuries, pain and suffering, mental anguish, shame, humiliation, injury to reputation and loss of earnings suffered by plaintiffs B.G., a minor, by her mother and guardian, Marcia Guillen, Marcia Guillen, individually, and Brittany Guillen, as a result of the willful, wanton, malicious, reckless, careless and negligent conduct of defendant City of New York and its agents, servants and/or employees, including, jointly and individually, Captain Johnson, Lieutenant Christopher Vonkessel, Sergeant Patricio Ovando, Detective James Barry, Detective Michael Smyth, Detective Ortiz, Detective Baker, Detective Feltham, Detective Larson, Detective Rojas, Detective Cardona, Detective Lollo and others, in violation of plaintiffs' constitutional and civil rights under the Fourth and Fourteenth Amendments of the

United States Constitution, under USCA §§ 1983, et seq., and for false arrest, false imprisonment, failure to supervise and trespass and under the laws of the State of New York.

2. Upon information and belief, and at all relevant times herein, the plaintiffs allege the following:

JURISDICTION AND VENUE

3. This Court has jurisdiction over this action pursuant to 42 U.S.C. 1981 and 28 U.S.C. §§ 1343 and 1367.

4. Venue is proper in the Southern District of New York pursuant to 28 U.S.C. § 1391 (b), in that a substantial part of the events or omissions giving rise to plaintiffs' claims occurred in the Southern District of New York.

THE PARTIES

Plaintiffs

5. Plaintiff B.G. was a resident of the County of Bronx, City and State of New York.

6. Plaintiff Marcia Guillen was a resident of the County of Bronx, City and State of New York.

7. Plaintiff Brittany Guillen was a resident of the County of Bronx, City and State of New York.

8. Plaintiff Marcia Guillen is the mother of plaintiffs B.G. and Brittany Guillen, and the guardian of Plaintiff B.G., a minor.

9. Plaintiff B.G. was born in 1997.

10. Plaintiff Brittany Guillen was born in 1992

11. Plaintiff Marcia Guillen was born in 1964.

12. Plaintiffs were law abiding, and had never engaged in any illicit narcotic activity.

Defendants

13. Defendant City of New York (the “City”) was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

14. The City maintained a police force entitled the New York City Police Department (the “NYPD”).

15. The City employed defendant Captain Johnson in a supervisory capacity (“Johnson”).

16. On November 17, 2011, defendant Johnson was assigned as a supervisory officer for a narcotics division within the NYPD.

17. Defendant Johnson was acting within the course and scope of his employment with the City.

18. The City employed defendant Lieutenant Christopher Vonkessel in a supervisory capacity (“Vonkessel”).

19. On November 17, 2011, defendant Vonkessel was assigned as a supervisory officer for a narcotics division within the NYPD.

20. Defendant Vonkessel was acting within the course and scope of his employment with the City.

21. The City employed Sergeant Patricio Vando in a supervisory capacity (“Vando”).

22. On November 17, 2011, defendant Vando was assigned as a supervisory officer for a narcotics division within the NYPD.

23. Defendant Vando was acting within the course and scope of his employment with the City.

24. The City employed defendant James Barry as a detective (“Barry”).

25. Defendant Barry was acting within the course and scope of his employment with the City.

26. The City employed defendant Michael Smyth as a detective ("Smyth").

27. Defendant Smyth was acting within the course and scope of his employment with the City.

28. The City employed defendant James Barry as a detective ("Barry").

29. Defendant Barry was acting within the course and scope of his employment with the City.

30. The City employed defendant Ortiz as a detective ("Ortiz").

31. Defendant Ortiz was acting within the course and scope of his employment with the City.

32. The City employed defendant Baker as a detective ("Baker").

33. Defendant Baker was acting within the course and scope of his employment with the City.

34. The City employed defendant Feltham as a detective ("Feltham").

35. Defendant Feltham was acting within the course and scope of his employment with the City.

36. The City employed defendant Larson as a detective ("Larson").

37. Defendant Larson was acting within the course and scope of his employment with the City.

38. The City employed defendant Rojas as a detective ("Rojas").

39. Defendant Rojas was acting within the course and scope of his employment with the City.

40. The City employed defendant Cardona as a detective (“Cardona”).

41. Defendant Cardona was acting within the course and scope of his employment with the City.

42. The City employed defendant Lollo as a detective (“Lollo”).

43. Defendant Lollo was acting within the course and scope of his employment with the City.

NOTICE OF CLAIM

44. On December 16, 2011, prior to the commencement of this action, and within the time prescribed by New York State law, a sworn Notice of Claim, stating, among other things, the time and place where plaintiffs suffered damages, together with plaintiffs' demand for adjustment thereof, was duly served upon the City. Thereafter, the City has refused or neglected for more than thirty days, and up to the commencement of this action, to make any adjustment or payment thereof. Thereafter, plaintiffs commenced this action within the time provided by New York State law.

45. On March 27, 2012, the City conducted statutory hearings pursuant to section 50-h of the General Municipal Law of the State of New York at the office of an attorney for Defendant.

46. Plaintiffs have complied with all conditions precedent under the laws of the State of New York to bring this action, including the filing of a notice of claim. Plaintiffs have commenced this action within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

FACTUAL BACKGROUND

47. On November 17, 2011, plaintiffs lawfully resided in an apartment in the Bronx, New York (the “apartment”).

48. At approximately 5:50 a.m., on November 17, 2011, defendants Johnson, Vonkessel, Ovando, Barry, Smyth, Ortiz, Baker, Feltham, Larson, Rojas, Cardona and Lollo (collectively, the “police officers”) forcibly gained entry into the apartment.

49. The police officers awoke plaintiffs and forcibly removed each plaintiff from her bed.

50. The police officers arrested plaintiffs by placing each plaintiff in handcuffs.

51. Each plaintiff was maintained in the apartment, consciously confined and restrained in handcuffs.

52. While each plaintiff remained restrained in handcuffs, the police officers repeatedly yelled, hollered and shouted profanities at plaintiffs.

53. While plaintiffs were restrained in handcuffs, the police officers pushed, shoved and grabbed plaintiffs.

54. The police officers undertook a search and raid of plaintiffs’ apartment without consent.

55. The police officers acted without consent or privilege to arrest, confine and detain plaintiffs.

56. The police officers acted individually and in concert.

57. The police officers’ search of plaintiffs’ apartment was cursory and lasted less than one (1) hour, yet the police officers maintained the plaintiffs in handcuffs for nearly two (2) hours.

COUNT ONE
(42 U.S.C. §1983, et. seq.)

58. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above in paragraphs 1 through 57, inclusive, with the same force and effect as if more fully set forth herein.

59. Acting in violation of 42 U.S.C. §1983, et. seq., defendants Johnson, Vonkessel, Ovando, Barry, Smyth, Ortiz, Baker, Feltham, Larson, Rojas, Cardona and Lollo deprived plaintiffs of their constitutional and civil rights secured under the Fourth Amendment of the United States Constitution, including plaintiffs' right to be free from unreasonable searches and detention.

60. The aforesaid acts of defendants caused each plaintiff to sustain damages, including discomfort, inconvenience, mental anguish, shame, humiliation, punishment and injury to their reputation, all of which could have been avoided by the exercise of due and reasonable care on the part of defendants.

61. By reason of the foregoing, plaintiffs have sustained damages for past and future pain and suffering and mental anguish, and past and future special damages.

62. Pursuant to 42 U.S.C. §1988(b), plaintiffs are entitled to a reasonable allowance for attorneys' fees as part of their costs.

COUNT TWO
(42 U.S.C. §1983, et. seq.)

63. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 62, inclusive, with the same force and effect as if more fully set forth herein.

64. Acting in violation of 42 U.S.C. §1983, et. seq., defendants Johnson, Vonkessel, Ovando, Barry, Smyth, Ortiz, Baker, Feltham, Larson, Rojas, Cardona and Lollo deprived plaintiffs of their constitutional and civil rights secured under the Fourth and Fourteenth Amendments of the United States Constitution, including plaintiffs' right to be free from excessive force.

65. The aforesaid acts of defendants caused each plaintiff to sustain damages, including discomfort, inconvenience, mental anguish, shame, humiliation, punishment and injury to their reputation, all of which could have been avoided by the exercise of due and reasonable care on the part of defendants.

66. By reason of the foregoing, plaintiffs have sustained damages for past and future pain and suffering and mental anguish, and past and future special damages.

67. Pursuant to 42 U.S.C. §1988(b), plaintiffs are entitled to a reasonable allowance for attorneys' fees as part of their costs.

COUNT THREE
(False Arrest and False Imprisonment)

68. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 67, inclusive, with the same force and effect as if more fully set forth herein.

69. Defendants Johnson, Vonkessel, Ovando, Barry, Smyth, Ortiz, Baker, Feltham, Larson, Rojas, Cardona and Lollo falsely arrested and imprisoned plaintiffs, and unreasonably maintained plaintiffs so confined without plaintiffs' consent or privilege to do so.

70. The aforesaid acts of defendants caused each plaintiff to consciously sustain mental anguish, shame, humiliation, punishment, injury to their reputation and other damages, all

of which could have been avoided by the exercise of due and reasonable care on the part of defendants.

71. By reason of the foregoing, plaintiffs have sustained damages for past and future pain and suffering and mental anguish, and past and future special damages.

COUNT FOUR
(Negligent Supervision)

72. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 71, inclusive, with the same force and effect as if more fully set forth herein.

73. Defendant City of New York was negligent in hiring, training and supervising defendant police officers who were careless, negligent and unskillful, and who did not possess the requisite knowledge, skill, character and competence to discharge their duties as members of the NYPD.

74. By reason of the aforesaid negligent and careless conduct, each plaintiff sustained mental anguish, shame, humiliation, punishment, injury to their reputation and other damages, all of which could have been avoided by the exercise of due and reasonable care on the part of defendants.

75. By reason of the foregoing, plaintiffs have sustained damages for past and future pain and suffering and mental anguish, and past and future special damages.

COUNT FIVE
(Trespass)

76. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 75, inclusive, with the same force and effect as if more fully set forth herein.

77. Defendants Johnson, Vonkessel, Ovando, Barry, Smyth, Ortiz, Baker, Feltham, Larson, Rojas, Cardona and Lollo committed a trespass of the apartment without justification or plaintiffs' permission to do so.

78. The aforesaid acts of defendants caused each plaintiff to sustain damages, including discomfort, inconvenience, mental anguish, shame, humiliation, punishment and injury to their reputation, all of which could have been avoided by the exercise of due and reasonable care on the part of defendants.

79. By reason of the foregoing, plaintiffs have sustained damages for past and future pain and suffering and mental anguish, and past and future special damages.

WHEREFORE, plaintiffs, B.G., a minor, by her mother and guardian, Marcia Guillen, Marcia Guillen, individually, and Brittany Guillen, demand judgment against defendants City of New York, Captain Johnson, Lieutenant Christopher Vonkessel, Sergeant Patricio Ovando, Detective James Barry, Detective Michael Smyth, Detective Ortiz, Detective Baker, Detective Feltham, Detective Larson, Detective Rojas, Detective Cardona, Detective Lollo and others, as more fully set forth above, in the First, Second, Third, Fourth and Fifth Causes of Action, in such an amount of compensatory damages as a jury may award, and the for the costs of this action.

JURY DEMAND

Plaintiffs, B.G., a minor, by her mother and guardian, Marcia Guillen, Marcia Guillen, individually, and Brittany Guillen, hereby demand a trial by jury of all issues set forth above.

Dated: White Plains, New York
August 16, 2013

ALEGRIA & BAROVICK LLP

By:



Anselmo A. Alegria, Esq.
Attorneys for Plaintiffs
245 Main Street, Suite 410
White Plains, NY 10601
Office: (914) 761-1133